

powers being rendered necessary to sub-sect. (2), to allow the powers under the settlement to be exercised (b).

10. **Powers of tenant for life absolute.**—But in exercising them he is in position of a trustee.—One of the objects of the Act doubtless was to give the tenant for life, in his uncontrolled discretion, large and absolute powers of dealing with and disposing of the settled land, without requiring him to procure the consent of any person interested in remainder, or making him responsible to any one for the exercise of his discretion; subject only to this, that by sect. 53 the tenant for life, in exercising any power under the Act, is to have regard to the interests of all parties entitled under the settlement, and is, in relation to the exercise thereof by him, to be deemed in the position, and to have the duties and liabilities, of *a trustee* for those parties.

In one case, Pearson, J., even said, “there is nothing in the Act to enable the Court to restrain the tenant for life from selling, whether he desires to sell because he is in debt and wishes to increase his income, or whether, without being in debt, he thinks he can increase his income, or [\*557] whether he desires to sell from mere \*unwillingness to take the trouble involved in the management of landed property; or whether he acts from worse motives, as from mere caprice or whim, or because he is desirous of doing that which he knows would be very disagreeable to those who expect to succeed him at his death. There is not, so far as I can see, any power, either in the Court or in trustees, to interfere with his power of sale” (a). But this seems to go too far, and not to give due effect to the provisions of sect. 53, under which the tenant for life is, in relation to the exercise of the powers of the Act, made a trustee for all parties interested, and must, it is conceived, in the exercise of his discretion, be subject to the same rules

(b) As to the effect of the restriction in sub-sect. (2), on the powers of trustees, see chap. xxiii. s. 2, v.; and see *Re Duke of Newcastle's Estates*, 24 Ch. D. 129; *Re Chaytor's Settled Estate Act*, 25 Ch. D. 651; *Re Barra-*

*Haden's Settled Estates*, W. N. 1883, p. 188.

(a) *Wheelwright v. Walker*, 23 Ch. D. 752; *Re Chaytor's Settled Estate Act*, 25 Ch. D. 651; and see *Thomas v. Williams*, 24 Ch. D. 558.